

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE APPROPRIATING MONEY FOR THE REED AVENUE CORRIDOR PROJECT."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. The Governing Body of the City of Cheyenne finds and declares that:

- A. Portions of the Reed Avenue Corridor Project are currently funded through revenues generated by the Sixth Penny Sales Tax approved by voters in 2017;
- B. Extensive and expensive planning, design and communication efforts by the City have taken place since that time, in cooperation with the Burlington Northern Santa Fe Railroad, to achieve completion of the Reed Avenue Corridor Project;
- C. The City Council during its most recent goal setting meeting, determined that the completion of previous Council priority projects was to be a primary goal in 2026, which previous projects includes the Reed Avenue Corridor Project;
- D. In developing the proposed Sixth Penny Sales Tax ballot for the August 18, 2026 election, the City evaluated numerous worthy capital projects competing for a limited amount of available Sixth Penny funding. Due to those funding limitations, the Reed Avenue Corridor Project was not included among the projects recommended for funding under the proposed 2026 Sixth Penny Sales Tax ballot; and
- E. The Governing Body therefore finds that the Reed Avenue Corridor Project remains a worthy and necessary public infrastructure project and that sufficient General Fund reserves are available to fund a portion of the project without adversely affecting the City's fiscal condition.

Section 2. That the sum of five million dollars (\$5,000,000.00) or so much thereof that may be necessary, and the same is hereby committed from General Fund Reserves to the Reed Avenue Corridor Project for planning, design, right-of-way acquisition, construction, and other related project costs. No funds shall be expended from this commitment until a final agreement with the Burlington Northern Santa Fe Railroad has been reached.

Section 3. No portion of the funds committed by this ordinance shall be transferred or expended for any purpose not authorized herein and any unexpended, unobligated funds remaining from this commitment shall be uncommitted from the City of Cheyenne General Fund Reserves account on June 30, 2027.

Section 4. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 5. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle